

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 39-001
Amendments to Title 5 of the Chickasaw Nation Code
(Extradition)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for extradition, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 11, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

CHAPTER 11
RULES OF CRIMINAL PROCEDURE
EXTRADITION

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~~Section 5-1101.18 — Temporary Confinement.~~
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~~Section 5-1101.21 — Confinement Not To Exceed.~~
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~~Section 5-1101.23 — Further Confinement.~~
~~Section 5-1101.24 — Failure To Appear.~~
~~Section 5-1101.25 — Pending Prosecution.~~
~~Section 5-1101.26 — Inquiry Not To Be Made.~~
~~Section 5-1101.27 — Warrant Recall or Reissue.~~
~~Section 5-1101.28 — Warrant To Receive Prisoner.~~
~~Section 5-1101.29 — Application for Return of Persons.~~
~~Section 5-1101.30 — Person Not Subject To Certain Service of Process.~~
~~Section 5-1101.31 — Right to Waive Warrant.~~
~~Section 5-1101.32 — No Waiver of Rights, Privileges or Jurisdiction.~~
~~Section 5-1101.33 — Person May Be Tried.~~
~~Section 5-1101.34 — Act To Be Uniform.~~
~~Section 5-1101.35 — Severability.~~

SECTION 5-1101.1**~~SHORT TITLE~~ EXTRADITION FROM THE CHICKASAW NATION.**

~~This Act may be cited as the “Chickasaw Nation Uniform Criminal Extradition Act” (the “Act”)~~

A. Whenever a state, territory, or Indian tribe demands any person as a fugitive from justice from the Chickasaw Nation, and produces a copy of an indictment, a valid warrant, or an affidavit made before a magistrate of any state, territory, or Indian tribe, charging the person demanded with having committed a crime:

1. the Chickasaw Nation shall arrest and secure the person.
2. The arrested person shall be promptly informed of:
 - a. the extradition request,
 - b. the underlying criminal charge, and
 - c. the arrested person’s right to legal counsel, and if the arrested person obtains legal counsel for the purpose of suing out a writ of habeas corpus, then the person shall be given ample time to sue out such writ as determined by the Chickasaw Nation District Court.
2. the Chickasaw Nation shall notify the demanding jurisdiction, or the agent of such authority appointed to receive the person, and shall cause the person to be

delivered to such agent when he shall appear. If no such agent appears within fifteen (15) days from the time of the arrest, the person shall be discharged. The demanding jurisdiction may request additional time, but the person shall not be held by the Chickasaw Nation for more than forty-five (45) days.

B. The demanding jurisdiction is responsible for transporting the person and all costs associated therewith and shall reimburse the Chickasaw Nation for the costs of detention.

C. Nothing in this Section shall be deemed to constitute a waiver by the Chickasaw Nation of its right, power, or privilege to try such demanded person for an alleged offense committed within the Chickasaw Nation.

SECTION 5-1101.2

~~FINDINGS; PURPOSE~~ DEMANDS FOR EXTRADITION TO THE CHICKASAW NATION.

~~A. The Chickasaw Tribal Legislature finds that it is in the best interest of the Chickasaw Nation and its citizens to operate effective and efficient systems of justice and law enforcement.~~

~~B. The Chickasaw Tribal Legislature further finds that in order to be effective and efficient, the jurisdiction of the Chickasaw Nation must coordinate with the jurisdictions of the various states of the United States and other Indian Nations.~~

~~C. This Act is intended to provide a method of uniform enforcement of Chickasaw law in coordination with the law of various states of the United States and other Indian Nations.~~

A. In all cases in which a charge of any offense is brought against a person who cannot be found in Chickasaw Nation, the Chickasaw Nation may demand extradition of such person from the jurisdiction in which such person may be found.

B. When the Chickasaw Nation shall demand the surrender of a fugitive, the actual and necessary expenses to return the person to the Chickasaw Nation may be paid by the Chickasaw Nation.

SECTION 5-1101.3

DEFINITIONS.

~~Where appearing in this Act:~~

1. ~~"Executive Authority" means the Governor of the Chickasaw Nation, and any person performing the functions of Governor in a state of the United States and all Indian nations located in the United States;~~

2. ~~"Governor" means the Governor of the Chickasaw Nation and includes any person performing the functions of Governor by authority of Chickasaw law;~~

3. ~~"Nation" shall mean the Chickasaw Nation; and~~

4. ~~“State or Territory” means any state or territory, organized or unorganized, of the United States of America and includes all Indian nations located within the United States.~~

SECTION 5-1101.4 ~~**COSTS OF EXTRADITION.**~~

A. ~~Costs of Extradition of Persons to the Chickasaw Nation. When the Governor shall demand from the Executive Authority of a State or Territory of the United States or of a foreign government the surrender to the authorities of this Nation of a fugitive from justice, the actual, necessary expenses to return the fugitive shall be paid out of the Court Fund and shall be collected as costs in the case.~~

B.

1. ~~In all cases wherein any person shall be charged with the violation of the statutes of this Nation relating to desertion or abandonment of wife and child, or of child, and such person shall be a fugitive from justice and such person’s whereabouts shall be known, it shall be the mandatory duty of the Chickasaw Nation Attorney General or his designee to request the Governor to issue a requisition for the return of such fugitive.~~

2. ~~The actual necessary costs of extradition to return such fugitive referred to in Paragraph 1 above, shall be paid from the Court Fund and shall be added on to the court costs against the deserter, and no such case shall be dismissed unless the costs are paid.~~

SECTION 5-1101.5 ~~**NO COMPENSATION, FEE OR REWARD.**~~

~~No compensation, fee, or reward of any kind can be paid to, or received by a public officer of the Nation for a service rendered or expense incurred in procuring from the Governor the demand mentioned in Section 5-1101.5, or the surrender of the fugitive, or for conveying him to the Nation, or detaining him herein, except as provided in Section 5-1101.5.~~

SECTION 5-1101.6 ~~**MISDEMEANOR.**~~

~~A violation of this Act shall be a misdemeanor.~~

SECTION 5-1101.7 ~~**FUGITIVES FROM JUSTICE TO BE EXTRADITED FROM THE CHICKASAW NATION ON DEMAND.**~~

~~Subject to the provisions of this Act, the provisions of the Constitution of the Chickasaw Nation and any and all acts of the Chickasaw Tribal Legislature enacted in pursuance thereof, a person charged in any State or Territory of the United States with treason, felony or other crime, who shall flee from justice and be found within the Chickasaw Nation, must, on demand of the Executive Authority of the State or Territory from which he fled, be delivered up by the Governor, to be removed to the State or Territory having jurisdiction of the crime.~~

SECTION 5-1101.8 — **FUGITIVES FROM JUSTICE TO BE EXTRADITED FROM THE CHICKASAW NATION ON INFORMATION OR WARRANT.**

~~Subject to the provisions of this Act, the provisions of the Constitution of the Chickasaw Nation and any and all acts of the Chickasaw Tribal Legislature enacted in pursuance thereof, it is the duty of the Governor to have arrested and delivered up to the Executive Authority of any State or Territory of the United States any person charged in that State with treason, felony, or other crime, who has fled from justice and is found within the Chickasaw Nation.~~

SECTION 5-1101.9 — **WRITING REQUIRED.**

~~No demand for the extradition of a person charged with crime in a State or Territory shall be recognized by the Governor unless in writing alleging, except in cases arising under Section 5-1101.12, that the accused was present in the demanding State or Territory at the time of the commission of the alleged crime, and that thereafter he fled from the State or Territory, and accompanied by a copy of an indictment found or by information supported by affidavit in the State or Territory having jurisdiction of the crime, or by a copy of an affidavit made before a magistrate there, together with a copy of any warrant which was issued thereupon; or by a copy of a judgment of conviction or of a sentence imposed in execution thereof, together with a statement by the Executive Authority of the demanding State or Territory that the person claimed has escaped from confinement or has broken the terms of his bail, probation or parole. The indictment, information, or affidavit made before the magistrate must substantially charge the person demanded with having committed a crime under the law of that State or Territory; and the copy of indictment, information, affidavit, judgment of conviction or sentence must be authenticated by the Executive Authority making the demand.~~

SECTION 5-1101.10 — **INVESTIGATION MAY BE MADE.**

~~When a demand shall be made upon the Governor by the Executive Authority of a State or Territory for the surrender of a person so charged with crime, the Governor may call upon the Attorney General or any prosecuting officer within the Chickasaw Nation to investigate or assist in investigating the demand, and to report to him the situation and circumstances of the person so demanded, and whether he ought to be surrendered.~~

SECTION 5-1101.11 — **FUGITIVES IMPRISONED OR UNDER CRIMINAL PROCEEDINGS.**

~~A. — When it is desired to have returned to this State a person charged in the Chickasaw Nation with a crime, and such person is imprisoned or is held under criminal proceedings then pending against him in a State or Territory, the Governor may agree with the Executive Authority of such State or Territory for the extradition of such person before the conclusion of such proceedings or his term of sentence in such State or Territory, upon condition that such person be returned to such State or Territory at the expense of the Nation as soon as the prosecution in the Nation is terminated.~~

~~B. The Governor may also surrender on demand of the Executive Authority of any other State any person in the Chickasaw Nation who is charged in the manner provided in Section 5-1101.29 below with having violated the laws of the State or Territory whose Executive Authority is making the demand, even though such person left the demanding State or Territory involuntarily.~~

SECTION 5-1101.12 — **OTHER PERSONS NOT FUGITIVES MAY BE SURRENDERED.**

~~The Governor may also surrender, on demand of the Executive Authority of a State or Territory, any person in the Chickasaw Nation charged in such State or Territory in the manner provided in Section 5-1101.9 with committing an act in the Chickasaw Nation, or in a third State or Territory, intentionally resulting in a crime in the State or Territory whose Executive Authority is making the demand, and the provisions of this Act not otherwise inconsistent, shall apply to such cases, even though the accused was not in that State or Territory at the time of the commission of the crime, and has not fled therefrom.~~

SECTION 5-1101.13 — **WARRANT TO BE ISSUED.**

~~If the Governor decides that the demand should be complied with, he shall sign a warrant of arrest, which shall be sealed with the State Seal, and be directed to any peace officer or other person whom he may think fit to entrust with the execution thereof. The warrant must substantially recite the facts necessary to the validity of its issuance.~~

SECTION 5-1101.14 — **WARRANT AND DELIVERY.**

~~Such warrant shall authorize the peace officer or other person to whom directed to arrest the accused at any time and any place where he may be found within the Nation and to command the aid of all peace officers or other persons in the execution of the warrant, and to deliver the accused, subject to the provisions of this Act to the duly authorized agent of the demanding State or Territory.~~

SECTION 5-1101.15 — **AUTHORITY TO ARREST.**

~~Every such peace officer or other person empowered to make the arrest, shall have the same authority, in arresting the accused, to command assistance therein, as peace officers have by law in the execution of any criminal process directed to them, with like penalties against those who refuse their assistance.~~

SECTION 5-1101.16 — **RIGHT OF LEGAL COUNSEL.**

~~Any person who is arrested within the Chickasaw Nation, by virtue of a warrant issued by the Governor, upon a requisition of the Governor of any State or Territory, as a fugitive from justice under the laws of the United States, shall not be delivered to the agent of such State or~~

~~Territory until notified of the demand made for his surrender, and given twenty-four (24) hours to make demand for legal counsel; and should such demand be made for the purpose of suing out a writ of habeas corpus, the prisoner shall be forthwith taken to the nearest Judge of the Chickasaw Nation District Court, and ample time given to sue out such writ, such time to be determined by the said Judge of the Chickasaw Nation District Court.~~

SECTION 5-1101.17 — PENALTIES FOR DISOBEDIENCE.

~~Any officer who shall deliver to the agent for extradition of the demanding State or Territory a person in his custody under the Governor's warrant, in willful disobedience to Section 5-1101.16, shall be guilty of a misdemeanor and, on conviction, shall be fined not more than five hundred dollars (\$500) or be imprisoned not more than six (6) months, or both.~~

SECTION 5-1101.18 — TEMPORARY CONFINEMENT.

~~The officer or persons executing the Governor's warrant of arrest, or the agent of the demanding State or Territory to whom the prisoner may have been delivered may, when necessary, confine the prisoner in the jail of any county or city through which he may pass; and the keeper of such jail must receive and safely keep the prisoner until the officer or person having charge of him is ready to proceed on his route, such officer or person being chargeable with the expense of keeping.~~

~~The officer or agent of a demanding State or Territory to whom a prisoner may have been delivered following extradition proceedings in a State or Territory, or to whom a prisoner may have been delivered after waiving extradition in such other State or Territory, and who is passing through the Chickasaw Nation with such a prisoner for the purpose of immediately returning such prisoner to the demanding State or Territory may, when necessary, confine the prisoner in the jail of any county or city through which he may pass; and the keeper of such jail must receive and safely keep the prisoner until the officer or agent having charge of him is ready to proceed on his route, such officer or agent, however, being chargeable with the expense of keeping; provided, however, that such officer or agent shall produce and show to the keeper of such jail satisfactory written evidence of the fact that he is actually transporting such prisoner to the demanding State or Territory after a requisition by the Executive Authority of such demanding State or Territory. Such prisoner shall not be entitled to demand a new requisition while in the Chickasaw Nation.~~

SECTION 5-1101.19 — WARRANT AND ARREST FOR CRIMES IN FOREIGN JURISDICTIONS.

~~Whenever any person within the Chickasaw Nation shall be charged on the oath of any credible person before any judge or magistrate of the Nation with the commission of any crime in any other State or Territory and, except in cases arising under Section 5-1101.12, with having fled from justice or with having been convicted of a crime in that State or Territory and having escaped from confinement, or having broken the terms of his bail, probation or parole, or whenever complaint shall have been made before any judge or magistrate in the Chickasaw Nation setting forth on the affidavit of any credible person in another State or Territory that a~~

~~crime has been committed in such other State or Territory, and that the accused has been charged in such State or Territory with the commission of the crime, and, except in cases arising under Section 5-1101.12, has fled from justice, or with having been convicted of a crime in that State or Territory and having escaped from confinement, or having broken the terms of his bail, probation or parole and is believed to be in the Chickasaw Nation, the judge or magistrate shall issue a warrant directed to any peace officer commanding him to apprehend the person named therein, wherever he may be found in the Chickasaw Nation, and to bring him before the same or any other judge or magistrate to answer the charge or complaint and affidavit, and a certified copy of the sworn charge or complaint and affidavit upon which the warrant is issued shall be attached to the warrant.~~

SECTION 5-1101.20 — ARREST WITHOUT A WARRANT.

~~The arrest of a person may be lawfully made also by any peace officer or a private person, without a warrant upon reasonable information that the accused stands charged in the courts of a State or Territory with a crime punishable by death or imprisonment for a term exceeding one (1) year, but when so arrested the accused must be taken before a judge or magistrate with all practicable speed and complaint must be made against him under oath setting forth the ground for the arrest as in Section 5-1101.19; and thereafter his answer shall be heard as if he had been arrested on a warrant.~~

SECTION 5-1101.21 — CONFINEMENT NOT TO EXCEED.

~~If from the examination before the judge or magistrate, it appears that the person held is the person charged with having committed the crime alleged and, except in cases arising under Section 5-1101.12, that he has fled from justice, the judge or magistrate must, by a warrant reciting the accusation, commit him to jail for such a time not exceeding thirty (30) days and specified in the warrant, as will enable the arrest of the accused to be made under a warrant of the Governor on a requisition of the Executive Authority of the State having jurisdiction of the offense, unless the accused give bail as provided in Section 5-1101.22, or until he shall be legally discharged.~~

SECTION 5-1101.22 — BAIL BOND.

~~Unless the offense with which the prisoner is charged is shown to be an offense punishable by death or life imprisonment under the laws of the State or Territory in which it was committed, a judge or magistrate in the Chickasaw Nation may admit the person arrested to bail by bond, with sufficient sureties, and in such sum as he deems proper, conditioned for his appearance before him at a time specified in such bond, and for his surrender, to be arrested upon the warrant of the Governor of this Nation.~~

SECTION 5-1101.23 — FURTHER CONFINEMENT.

~~If the accused is not arrested under warrant of the Governor by the expiration of the time specified in the warrant or bond, a judge or magistrate may discharge him or may recommit him~~

~~for a further period not to exceed sixty (60) days, or a judge or magistrate may again take bail for his appearance and surrender, as provided in Section 5-1101.22, but within a period not to exceed sixty (60) days after the date of such new bond.~~

SECTION 5-1101.24 — FAILURE TO APPEAR.

~~If the prisoner is admitted to bail, and fails to appear and surrender himself according to the conditions of his bond, the judge, or magistrate by proper order, shall declare the bond forfeited and order his immediate arrest without warrant if he be within the Chickasaw Nation. Recovery may be had on such bond in the name of the Nation as in the case of other bonds given by the accused in criminal proceedings within the Chickasaw Nation.~~

SECTION 5-1101.25 — PENDING PROSECUTION.

~~If a criminal prosecution has been instituted against such person under Chickasaw law and is still pending, the Governor, in his discretion, either may surrender him on demand of the Executive Authority of another State or Territory or hold him until he has been tried and discharged or convicted and punished in the Chickasaw Nation.~~

SECTION 5-1101.26 — INQUIRY NOT TO BE MADE.

~~The guilt or innocence of the accused as to the crime of which he is charged may not be inquired into by the Governor or in any proceedings after the demand for extradition accompanied by a charge of crime in legal form as above provided shall have been presented to the Governor, except as it may be involved in identifying the person held as the person charged with the crime.~~

SECTION 5-1101.27 — WARRANT RECALL OR REISSUE.

~~The Governor may recall his warrant of arrest or may issue another warrant whenever he deems proper.~~

SECTION 5-1101.28 — WARRANT TO RECEIVE PRISONER.

~~Whenever the Governor shall demand a person charged with crime or with escaping from confinement or breaking the terms of his bail, probation or parole in the Chickasaw Nation, from the Executive Authority of any other State or Territory, or from the Chief Justice or an Associate Justice of the Supreme Court of the District of Columbia authorized to receive such demand under the laws of the United States, he shall issue a warrant under the seal of the Nation, to some agent, commanding him to receive the person so charged if delivered to him and convey him to the proper officer of the Chickasaw Nation.~~

SECTION 5-1101.29 — APPLICATION FOR RETURN OF PERSONS.

~~A. — When the return to the Nation of a person charged with crime in the Chickasaw Nation is required, the prosecuting attorney shall present to the Governor his written application~~

~~for a requisition for the return of the person charged, in which application shall be stated the name of the person so charged, the crime charged against him, the approximate time, place and circumstances of its commission, the State or Territory in which he is believed to be, including the location of the accused therein at the time the application is made and certifying that, in the opinion of the said prosecuting attorney the ends of justice require the arrest and return of the accused to the Nation for trial and that the proceeding is not instituted to enforce a private claim.~~

~~B. — When the return to the Nation is required of a person who has been convicted of a crime in the Chickasaw Nation and has escaped from confinement or broken the terms of his bail, probation or parole, the prosecuting attorney shall present to the Governor a written application for a requisition for the return of such person, in which application shall be stated the name of the person, the crime of which he was convicted, the circumstances of his escape from confinement or of the breach of the terms of his bail, probation or parole, the State or Territory in which he is believed to be, including the location of the person therein at the time application is made.~~

~~C. — The application shall be verified by affidavit, shall be executed in duplicate and shall be accompanied by two certified copies of the information and/or affidavit filed, or of the complaint made to the judge or magistrate, stating the offense with which the accused is charged, or of the judgment of conviction or of the sentence. The prosecuting officer may also attach such further affidavits and other documents in duplicate as he shall deem proper to be submitted with such application. One copy of the application, with the action of the Governor indicated by endorsement thereon, and one of the certified copies of the information and/or affidavits, or of the judgment of conviction or of the sentence shall be filed in the office of the Court Clerk to remain of record in that office. The other copies of all papers shall be forwarded with the Governor's requisition.~~

SECTION 5-1101.30 — PERSON NOT SUBJECT TO CERTAIN SERVICE OF PROCESS.

~~A person brought into the Nation by, or after waiver of, extradition based on a criminal charge shall not be subject to service of personal process in civil actions arising out of the same facts as the criminal proceedings to answer which he is being or has been returned, until he has been convicted in the criminal proceeding, or, if acquitted, until he has had reasonable opportunity to return to the State or Territory from which he was extradited.~~

SECTION 5-1101.31 — RIGHT TO WAIVE WARRANT.

~~Any person arrested in the Chickasaw Nation charged with having committed any crime in another State or Territory or alleged to have escaped from confinement, or broken the terms of his bail, probation or parole may waive the issuance and service the warrant provided for in Sections 5-1101.13 and 5-1101.14 and all other procedure incidental to extradition proceedings, by executing or subscribing in the presence of a Judge of the Chickasaw District Court a writing which states that he consents to return to the demanding State or Territory; provided, however, that before such waiver shall be executed or subscribed by such person it shall be the duty of such Judge to inform such person of his rights to the issuance and service of a warrant of~~

~~extradition and to obtain a writ of habeas corpus as provided for in Section 5-1101.16. If and when such consent has been duly executed it shall forthwith be forwarded to the office of the Governor and filed therein. The Judge shall direct the officer having such person in custody to deliver forthwith such person to the duly accredited agent or agents of the demanding State or Territory, and shall deliver or cause to be delivered to such agent or agents a copy of such consent; provided, however, that nothing in this Section shall be deemed to limit the rights of the accused person to return voluntarily and without formality to the demanding State or Territory, nor shall this waiver procedure be deemed to be an exclusive procedure or to limit the powers, rights or duties of the officers of the demanding State or Territory or of the Nation.~~

SECTION 5-1101.32 — NO WAIVER OF RIGHTS, PRIVILEGES OR JURISDICTION.

~~Nothing in this Act contained shall be deemed to constitute a waiver by the Nation of its right, power or privilege to try such demanded person for crime committed within the Chickasaw Nation, or of its right, power or privilege to regain custody of such person by extradition proceedings or otherwise for the purpose of trial, sentence or punishment for any crime committed within the Chickasaw Nation, nor shall any proceedings had under this Act which result in, or fail to result in, extradition be deemed a waiver by the Nation of any of its rights, privileges or jurisdiction in any way whatsoever.~~

SECTION 5-1101.33 — PERSON MAY BE TRIED.

~~After a person has been brought back to the Nation by, or after waiver of extradition proceedings, he may be tried in the Chickasaw Nation for other crimes which he may be charged with having committed here as well as that specified in the requisition for his extradition.~~

SECTION 5-1101.34 — ACT TO BE UNIFORM.

~~The provisions of this Act shall be so interpreted and construed as to effectuate its general purposes to make uniform the law of those States and Territories which enact it.~~

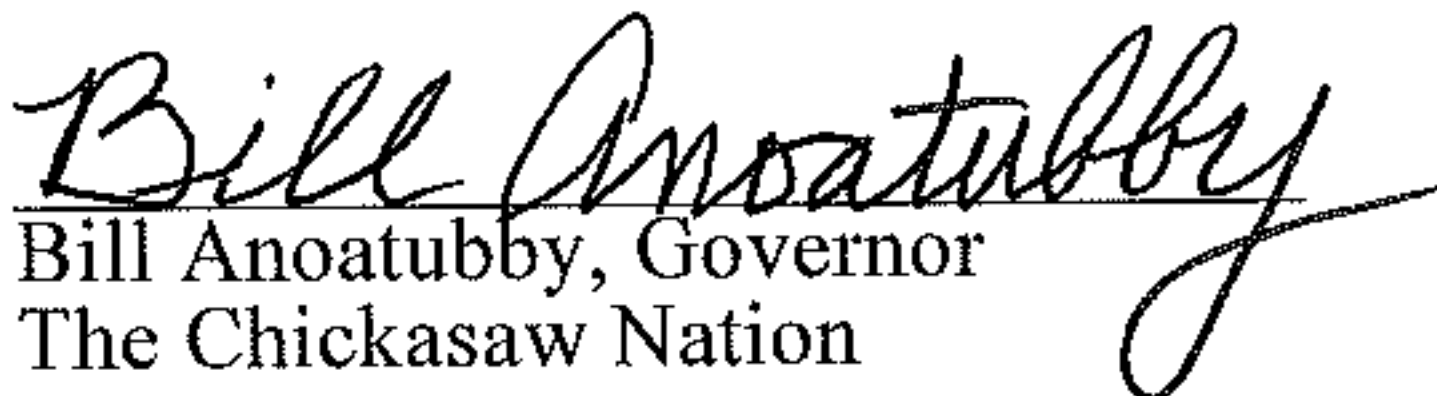
SECTION 5-1101.35 — SEVERABILITY.

~~If any provision of this Act or the application thereof to any person or circumstances is held invalid, such invalidity shall not affect other provisions or applications of the Act which can be given effect without the invalid provision or application, and to this end the provisions of this Act are declared to be severable.”~~

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on November 19, 2021, by a vote of 11 ayes, 0 nays, and 0 abstentions.


Chairperson Pro Tempore
Chickasaw Tribal Legislature


Secretary Pro Tempore
Chickasaw Tribal Legislature

Concur:  Date: NOV 19 2021
Bill Anoatubby, Governor
The Chickasaw Nation

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 39-001

Explanation

Explanation:

This resolution streamlines the extradition procedures in which a demand for the extradition of a person is made.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature